

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name:

Tektronix Inc

Vendor City/State:

Beaverton, OR

Cage: 80009

Total Dollar Value:



RDD: 09/30/2026

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Repair of Test Equipment to OEM specs

Line# 1 - Nomen: Arbitrary Waveform Generator, PN: AWG5012, SN: B010163, Fault: Will not address the GPIB lines, RMA# 2458098

Line# 2 - Nomen: Arbitrary Waveform Generator, PN: AWG5012C, SN: B050982, Fault: Channel 2 is inoperable, RMA# 2458098

Line# 3 - Nomen: Logic Analyzer, PN: TLA7016, SN: B010342, Fault: Communication failure, RMA# 2458098

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☒ A. ONLY ONE RESPONSIBLE SOURCE
- ☐ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

TEKTRONIX is the OEM for these units. TEKTRONIX designed, built and produced the test equipment. Another firm cannot obtain the necessary highly specialized experience or technical capability in time to perform the repair requirement. From its initial delivery the unit was determined to be an OEM repair due to the complexity and knowledge required to do the repairs. The Navy did not buy the drawings or the required alignment procedures to allow us or anyone else to do the required repairs and bring the units back to the required operational specifications. The government did not procure or does not possess the proprietary data TEKTRONIX has all the necessary information and applicable data to complete the repair. No other vendor has rights to any of the proprietary data or the necessary equipment, data, and test procedures. To reverse engineer, the system and create drawings and parts list would take over two years and an estimated [REDACTED] to create with no guarantee that any other source would be able to repair the units.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

TEKTRONIX has the expertise and parts to repair and align the unit back to its original required specifications.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

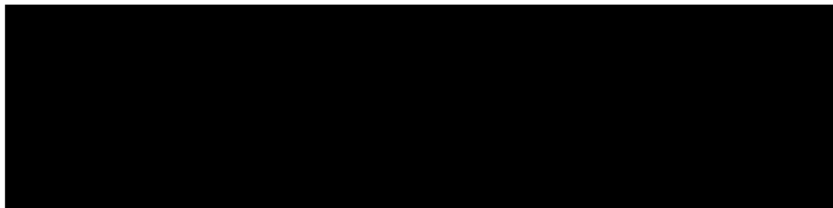
1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

D.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

Signature



Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

HELTON.MORGAN.MICHE
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Digitally signed by HELTON.MORGAN.MICHELLE
JUNALEE
Date: 2026.04.01 10:20:07 -04'00'

Contracting Officer Signature

Name (Printed) / Phone #

Date